

EXHIBIT D

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

RAYMOND ALMONTE, JERIMIAH VEGA AND
ANTHONY MALAVE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DETECTIVE STEVEN MILLWATER FORMERLY OF
GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG
ENFORCEMENT TASK UNIT, TAX REG#935325, NEW
YORK CITY POLICE DETECTIVE MICHAEL DUFFY,
TAX REG. 923787 OF GANG UNIT QUEENS, THE
SUPERVISING TACTICAL TEAM SERGEANT ON
ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE
INVESTIGATING OFFICER ON THE WARRANT ON
SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW
YORK CITY POLICE OFFICERS SAID ARREST WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE III-V, AS IT PERTAINS TO THE
INCIDENT ON DECEMBER 3, 2015, AND NO OTHER
DATE,

Defendants.

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FEB 14 2017

COUNTY CLERK
QUEENS COUNTY

Index No.

Purchased

1443-2017

FEB 14 - 2017

Plaintiff designates QUEENS
County as the place of trial

The basis of the venue is where
the tort arose.

SUMMONS

Plaintiff(s) resides at

Raymond Almonte
102-24 93rd Avenue
Richmond Hill, NY 11418

Jeremiah Vega
130-07 Foch Boulevard
Jamaica, NY 11420

Anthony Malave
1348 Webster Avenue
Bronx, NY 10456

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete is this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
February 10, 2017

JOHN R. DEPAOLA & ASSOCIATES PLLC

Attorneys for Plaintiffs

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-4000

Defendants' Addresses:

CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

**NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG
UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX
REG#935325**
99 Tenth Avenue
New York, NY 10011
(212-620-4942

**NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG
UNIT QUEENS**
242-20 North Conduit
Rosedale, NY 11422
(718-276-6355)

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
RAYMOND ALMONTE, JERIMIAH VEGA AND
ANTHONY MALAVE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DETECTIVE STEVEN MILLWATER FORMERLY OF
GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG
ENFORCEMENT TASK UNIT, TAX REG#935325, NEW
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NAMES ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE III-V, AS IT PERTAINS TO THE
INCIDENT ON DECEMBER 3, 2015, AND NO OTHER
DATE,

Defendants.

Index No.

VERIFIED COMPLAINT

RAYMOND ALMONTE, JERIMIAH VEGA AND ANTHONY MALAVE, by their
attorneys, JOHN R. DEPAOLA & ASSOCIATES PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff, **RAYMOND ALMONTE**, was a resident of Queens County, City and State of New York.
2. At all times mentioned, Defendant, **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 24th day of June, 2016, and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to

on their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally, which Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff, **RAYMOND ALMONTE** has complied with the request of the municipal Defendants' for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, were and are police officers of

the Defendant, **CITY OF NEW YORK**, and at all times herein were acting in such capacity as its agents, servants and employees.

7. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, **RAYMOND ALMONTE**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT**

KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE, jointly and severally did place Plaintiff, **RAYMOND ALMONTE**, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, jointly and severally without

any arrest warrant, order or other legal process and without any legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2015QN059518. The Plaintiff was thereafter held in custody over the course of approximately twenty-seven (27) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. Plaintiff was subjected to multiple strip searches and cavity inspections while in custody.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO**

THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in one of the City of New York's Correctional Facilities. The Plaintiff was thereafter held in custody over the course of approximately twenty-seven (27) days before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. Plaintiff was also subjected to multiple strip searches and cavity inspections while in custody.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about December 3, 2015 and from that time until the dismissal of charges on or about March 31, 2016, which was a favorable termination for the accused by the Honorable Judge S. Melendez, presiding at the Criminal Court of the City of New York, Queens County, Defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING**

OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE, deliberately and maliciously prosecuted Plaintiff, **RAYMOND ALMONTE**, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York. The absence of probable cause demonstrates the existence of malice by the Defendants herein.

16. The Defendants, jointly and severally, including their agents, servants or employees, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff, and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2015QN059518 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
22. Plaintiff, **RAYMOND ALMONTE**, is and at all times relevant herein, a citizen of the United States and a resident of Queens County in the State of New York and brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, and Article 42, Section 1988 of the United States Code.
23. The Defendant, **CITY OF NEW YORK**, is a municipality duly incorporated under the laws of the State of New York.

24. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, the Defendants, armed police, while effectuating the seizure of the Plaintiff, **RAYMOND ALMONTE**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so. The Plaintiff was not aware at the time of the arrest the names of the officers involved in the arrest. The officers are described as four to five (4-5) officers, all male, dressed in "SWAT" gear, as well as a number of plain clothes officers. The officer that signed the criminal court complaint against the Plaintiff is **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325**. The other officers, **NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787**, and those listed as "JOHN/JANE DOE", assisted in the investigation that led to the arrest and prosecution of the Plaintiff. The police entered the home of Plaintiff's friend, Anthony Gonzalez, pursuant to an alleged valid search warrant. Plaintiff did not, and does not, reside in the premises. Plaintiff was at the premises assisting Joan Lemons, Anthony Gonzalez's grandmother, with a plumbing issue. Plaintiff is unaware of the name of the officer who actually placed the Plaintiff in handcuffs. This officer, described as appearing of Indian decent, along with other officers, entered the bathroom where Plaintiff had been, with guns drawn,

grabbed the person of the Plaintiff, by his neck, and slammed him to the floor, placing his knee in Plaintiff's back, and subsequently rear-handcuffed the Plaintiff. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red. The officers took Plaintiff to an NYPD Precinct. Plaintiff was subjected to multiple strip search and cavity inspections while being held in custody. Plaintiff was in custody for approximately twenty-seven (27) days before being released, during which time he was attacked multiple times by gang members, causing serious and permanent injuries. The Plaintiff's case was dismissed on March 31, 2016 before the Hon. S. Melendez, in the Criminal Court of the City of New York, County of Queens, which represents a favorable termination for the Plaintiff.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. freedom from assault to his person;
 - b. freedom from battery to his person;
 - c. freedom from illegal search and seizure;
 - d. freedom from false arrest;
 - e. freedom from malicious prosecution;
 - f. freedom from the use of excessive force during the arrest process;
 - g. freedom from unlawful imprisonment; and
 - h. freedom from loss of his liberty.
 - i. freedom from strip search and/or cavity inspection.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to

those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
30. Defendant, **CITY OF NEW YORK**, was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the

City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

31. Defendant, **CITY OF NEW YORK**, is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
- a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;
 - b. excessive force cannot be used against an individual who does not physically resist arrest; and
 - c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
32. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant, **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, maliciously prosecute, search and seize illegally, commit an assault/battery to his person, and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "32" as it set forth at length herein.

34. Defendant, **CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant, **CITY OF NEW YORK**, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR A NINTH CAUSE OF ACTION

35. At all times mentioned, Plaintiff, **JEREMIAH VEGA**, was a resident of Queens County, City and State of New York.
36. At all times mentioned, Defendant, **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

37. On or about the 24th day of June, 2016, and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally, which Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
38. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
39. The Plaintiff, **JEREMIAH VEGA**, has complied with the request of the municipal Defendants' for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
40. Upon information and belief, at all times mentioned, Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS**

TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE, were and are police officers of the Defendant, **CITY OF NEW YORK**, and at all times herein were acting in such capacity as its agents, servants and employees.

41. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, **JEREMIAH VEGA**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A TENTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “35” through “41” with full force and effect as though set forth at length herein.
43. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE**

WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE, jointly and severally did place Plaintiff, JEREMIAH VEGA, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

44. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "35" through "43" with full force and effect as though set forth at length herein.
45. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants, NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW

YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATEDATE, jointly and severally without any arrest warrant, order or other legal process and without any legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2015QN059522. The Plaintiff was thereafter held in custody over the course of approximately seventy (70) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. Plaintiff was subjected to multiple strip searches and cavity inspections while in custody.

AS AND FOR A TWELFTH CAUSE OF ACTION

46. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “35” through “45” with full force and effect as though set forth at length herein.
47. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants, NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971

N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in one of the City of New York's Correctional Facilities. The Plaintiff was thereafter held in custody over the course of approximately seventy (70) days before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. Plaintiff was also subjected to multiple strip searches and cavity inspections while in custody.

AS AND FOR A THIRTEENTH CAUSE OF ACTION

48. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "35" through "47" with full force and effect as though set forth at length herein.
49. Upon information and belief, on or about December 3, 2015 and from that time until the dismissal of charges on or about March 31 2016, which was a favorable termination for the accused by the Honorable Judge S. Melendez presiding at the Criminal Court of the City of New York, Queens County, Defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO**

THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE, deliberately and maliciously prosecuted Plaintiff, JEREMIAH VEGA, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

50. The Defendants, jointly and severally, including their agents, servants or employees, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff, and due to the absence of probable cause malice can be inferred.
51. The commencement of these criminal proceedings under Docket No. 2015QN059522 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
52. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust

criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

53. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs “35” through “52” with full force and effect as though set forth at length herein.
54. Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
55. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
56. Plaintiff, **JEREMIAH VEGA**, is and at all times relevant herein, a citizen of the United States and a resident of Queens County in the State of New York and

brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, and Article 42, Section 1988 of the United States Code.

57. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
58. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, the Defendants, armed police, while effectuating the seizure of the Plaintiff, **JEREMIAH VEGA**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so. The police entered the home of Plaintiff, Anthony Gonzalez, where the Plaintiff **JEREMIAH VEGA** was renting a room in the basement, pursuant to an alleged valid search warrant. Plaintiff was in his bedroom with the door closed. Plaintiff is unaware of the name of the officer who actually placed the Plaintiff in handcuffs. This officer, described as male officer in full "SWAT" gear along with other officers, entered the bedroom where Plaintiff had been, without knocking, with guns drawn, grabbed the person of the Plaintiff, and slammed him to the floor, placing his, and subsequently rear-handcuffed the Plaintiff. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red. The officers took Plaintiff to an NYPD Precinct. Plaintiff was in custody for approximately seventy (70) days before being released, and was subjected to multiple strip search and cavity inspections while being held in custody. Plaintiff's case was

dismissed on March 31 2016, which was a favorable termination for the accused by the Honorable Judge S. Melendez presiding at the Criminal Court of the City of New York, Queens County.

59. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. freedom from assault to his person;
- b. freedom from battery to his person;
- c. freedom from illegal search and seizure;
- d. freedom from false arrest;
- e. freedom from malicious prosecution;
- f. freedom from the use of excessive force during the arrest process;
- g. freedom from unlawful imprisonment; and
- h. freedom from loss of his liberty.
- i. freedom from strip search and/or cavity inspection.

60. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiffs' rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

61. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A FIFTEENTH CAUSE OF ACTION

62. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs “35” through “61” with full force and effect as though set forth at length herein.
63. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
64. Defendant, **CITY OF NEW YORK**, was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
65. Defendant, **CITY OF NEW YORK**, is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
- a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;

- b. excessive force cannot be used against an individual who does not physically resist arrest; and
 - c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
66. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant, **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, maliciously prosecute, search and seize illegally, commit an assault/battery to his person, and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SIXTEENTH CAUSE OF ACTION

67. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "35" through "66" as it set forth at length herein.
68. Defendant, **CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT**

ON DECEMBER 3, 2015, AND NO OTHER DATE, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant, **CITY OF NEW YORK**, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION

69. At all times mentioned, Plaintiff, **ANTHONY MALAVE**, was a resident of Bronx County, City and State of New York.
70. At all times mentioned, Defendant, **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
71. On or about the 24th day of June, 2016, and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally, which Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
72. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been

neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

73. The Plaintiff, **ANTHONY MALAVE**, has complied with the request of the municipal Defendants' for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
74. Upon information and belief, at all times mentioned, Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, were and are police officers of the Defendant **CITY OF NEW YORK**, and at all times herein were acting in such capacity as its agents, servants and employees.
75. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, **ANTHONY MALAVE**, in an excessive manner about his person, causing her physical pain and mental

suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION

76. Plaintiff, **ANTHONY MALAVE**, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “69” through “75” with full force and effect as though set forth at length herein.
77. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, jointly and severally did place Plaintiff, **ANTHONY MALAVE**, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent

fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR AN NINETEENTH CAUSE OF ACTION

78. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “69” through “77” with full force and effect as though set forth at length herein.
79. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, jointly and severally without any arrest warrant, order or other legal process and without any legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Queens and there charged him with the crimes on Docket No. 2015QN05921. The Plaintiff was thereafter held in custody over the course of approximately seventy (70) days until he was released. The Defendants intentionally confined

the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. Plaintiff was subjected to multiple strip searches and cavity inspections while in custody.

AS AND FOR A TWENTIETH CAUSE OF ACTION

80. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “69” through “79” with full force and effect as though set forth at length herein.
81. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, State of New York, the Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, **ANTHONY MALAVE**, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in one of the City of New York’s Correctional Facilities. The Plaintiff was thereafter held in custody over the

course of approximately seventy (70) days before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. Plaintiff was subjected to multiple strip searches and cavity inspections while in custody.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION

82. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs “69” through “81” with full force and effect as though set forth at length herein.
83. Upon information and belief, on or about December 3, 2015 and from that time until the dismissal of charges on or about March 31, 2016, which was a favorable termination for the accused by the Honorable Judge S. Melendez presiding at the Criminal Court of the City of New York, Queens County, Defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, deliberately and maliciously prosecuted Plaintiff, **ANTHONY MALAVE**,

an innocent woman without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

84. The Defendants, jointly and severally, including their agents, servants or employees, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff, and due to the absence of probable cause malice can be inferred.
85. The commencement of these criminal proceedings under Docket No. 2015QN 059521 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
86. As a result of the malicious prosecution, Plaintiff was deprived of her liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend her liberty against these unjust charges.

AS AND FOR A TWENTY-SECOND CAUSE OF ACTION

87. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "69" through "86" with full force and effect as though set forth at length herein.
88. Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS,**

THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

89. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
90. Plaintiff, **ANTHONY MALAVE**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, and Article 42, Section 1988 of the United States Code.
91. The Defendant, **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
92. On or about December 3, 2015, at approximately 6:00 A.M., in the vicinity of the inside of 84-21 108th Street, County of Queens, the Defendants, armed police, while effectuating the seizure of the Plaintiff, **ANTHONY MALAVE**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and

maliciously prosecuted without the Defendants possessing probable cause to do so. The police entered the home of Plaintiff, Anthony Gonzalez, where the Plaintiff, **ANTHONY MALAVE**, was renting a room in the basement, pursuant to an alleged valid search warrant. Plaintiff was in his bedroom with the door closed. Plaintiff is unaware of the name of the officer who actually placed the Plaintiff in handcuffs. This officer, described as male officer is full "SWAT" gear along with other officers, entered the bedroom where Plaintiff had been, without knocking, with guns drawn, grabbed the person of the Plaintiff, and put him to the floor, and subsequently rear-handcuffed the Plaintiff. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red. The officers took Plaintiff to an NYPD Precinct. Plaintiff was in custody for approximately seventy (70) days before being released, and was subjected to multiple strip search and cavity inspections while being held in custody.

93. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. freedom from assault to his person;
 - b. freedom from battery to his person;
 - c. freedom from illegal search and seizure;
 - d. freedom from false arrest;
 - e. freedom from malicious prosecution;
 - f. freedom from the use of excessive force during the arrest process;
 - g. freedom from unlawful imprisonment; and
 - h. freedom from loss of his liberty.
 - i. Freedom from strip search and/or cavity inspection.

94. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiffs' rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
95. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION

96. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "69" through "95" with full force and effect as though set forth at length herein.
97. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
98. Defendant, **CITY OF NEW YORK**, was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where

probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

99. Defendant, **CITY OF NEW YORK**, is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

- a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;
- b. excessive force cannot be used against an individual who does not physically resist arrest; and
- c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

100. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant, **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, maliciously prosecute, search and seize illegally, commit an assault/battery to his person, and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION

101. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "69" through "100" as it set forth at length herein.

102. Defendant, **CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants, **NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant, **CITY OF NEW YORK**, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
February 10, 2017

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: JOHN R. DEPAOLA, ESQ.

Attorneys for Plaintiff

42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

----- X
RAYMOND ALMONTE, JERIMIAH VEGA AND :
ANTHONY MALAVE, :

Plaintiffs, :

-against- :

Index No. :

VERIFICATION

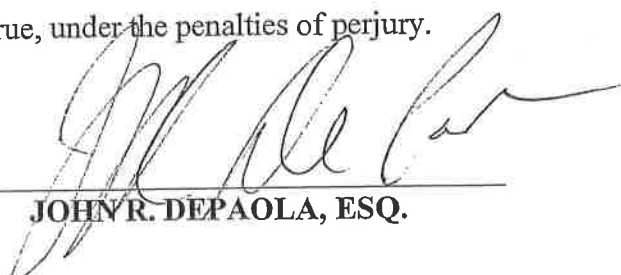
THE CITY OF NEW YORK, NEW YORK CITY :
POLICE DETECTIVE STEVEN MILLWATER :
FORMERLY OF GANG UNIT QUEENS, NOW :
ASSIGNED TO THE DRUG ENFORCEMENT TASK :
UNIT, TAX REG#935325, NEW YORK CITY POLICE :
DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF :
GANG UNIT QUEENS, THE SUPERVISING :
TACTICAL TEAM SERGEANT ON ARREST :
#Q15662971 N/H/A JOHN/JANE DOE I, THE :
INVESTIGATING OFFICER ON THE WARRANT ON :
SAID ARREST N/H/A JOHN/JANE DOE II, OTHER :
NEW YORK CITY POLICE OFFICERS SAID ARREST :
WHOSE NAMES ARE NOT KNOWN AT THIS TIME :
N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO :
THE INCIDENT ON DECEMBER 3, 2015, AND NO :
OTHER DATE, X

Defendants.

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
February 10, 2017


JOHN R. DEPAOLA, ESQ.

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RAYMOND ALMONTE, JERIMIAH VEGA AND ANTHONY MALAVE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DETECTIVE STEVEN MILLWATER FORMERLY OF GANG UNIT QUEENS, NOW ASSIGNED TO THE DRUG ENFORCEMENT TASK UNIT, TAX REG#935325, NEW YORK CITY POLICE DETECTIVE MICHAEL DUFFY, TAX REG. 923787 OF GANG UNIT QUEENS, THE SUPERVISING TACTICAL TEAM SERGEANT ON ARREST #Q15662971 N/H/A JOHN/JANE DOE I, THE INVESTIGATING OFFICER ON THE WARRANT ON SAID ARREST N/H/A JOHN/JANE DOE II, OTHER NEW YORK CITY POLICE OFFICERS SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE III-V, AS IT PERTAINS TO THE INCIDENT ON DECEMBER 3, 2015, AND NO OTHER DATE,

Defendants

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA, ESQ..
Attorney for Plaintiff
42-40 Bell Boulevard, Suite 500
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated _____

Attorney(s) for